

1 ENGROSSED SENATE
JOINT
2 RESOLUTION NO. 39

By: Paxton of the Senate

3 and

4 Hilbert of the House
5
6

7 A Joint Resolution directing the Secretary of State
to refer to the people for their approval or
8 rejection a proposed amendment to Section 8B of
Article X of the Oklahoma Constitution, which relates
9 to the limit on percentage of fair cash value of real
property; reducing the limit for certain tax years;
10 providing ballot title; ordering special election on
certain date; and directing filing.
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13 BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE
14 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

15 SECTION 1. The Secretary of State shall refer to the people for
16 their approval or rejection, as and in the manner provided by law,
17 the following proposed amendment to Section 8B of Article X of the
18 Oklahoma Constitution to read as follows:

19 Section 8B. Despite any provision to the contrary, on and after
20 January 1, 2013, the fair cash value of any parcel of locally
21 assessed real property shall not increase by more than five percent
22 (5%) in any taxable year for tax years 2013 through 2026 and three
23 percent (3%) for tax years 2027 and subsequent tax years; provided,
24 if such property qualified for a homestead exemption or is

1 classified as agricultural land, any increase to the fair cash value
2 of such locally assessed real property in a taxable year shall be
3 limited to three percent (3%) for tax years 2013 through 2026 and
4 one percent (1%) for tax year 2027 and subsequent tax years. The
5 provisions of this section shall not apply in any year when title to
6 the property is transferred, changed, or conveyed to another person
7 or when improvements have been made to the property. If title to
8 the property is transferred, changed, or conveyed to another person,
9 the property shall be assessed for that year based on the fair cash
10 value as set forth in Section 8 of Article X of this Constitution.
11 If any improvements are made to the property, the increased value to
12 the property as a result of the improvement shall be assessed for
13 that year based on the fair cash value as set forth in Section 8 of
14 Article X of this Constitution. The provisions of this section
15 shall not apply to any personal property which may be taxed ad
16 valorem or any property which may be valued or assessed by the State
17 Board of Equalization.

18 The Legislature shall enact any laws necessary to implement the
19 provisions of this section.

20 SECTION 2. The Ballot Title for the proposed Constitutional
21 amendment as set forth in SECTION 1 of this resolution shall be in
22 the following form:

23 BALLOT TITLE

24 Legislative Referendum No. _____ State Question No. _____

1 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

2 This measure amends Section 8B of Article 10 of the Oklahoma
3 Constitution, which limits the annual growth of the fair cash
4 value of real property to five percent and further limits the
5 growth to three percent for real property for which a homestead
6 exemption is granted and real property classified as
7 agricultural land. The measure would reduce those limits to
8 three percent and one percent, respectively.

9 SHALL THE PROPOSAL BE APPROVED?

10 FOR THE PROPOSAL — YES _____

11 AGAINST THE PROPOSAL — NO _____

12 SECTION 3. A special election is hereby ordered to be held
13 throughout the State of Oklahoma on the date of August 25, 2026, at
14 which time the proposed amendment to the Oklahoma Constitution, as
15 set forth in SECTION 1 of this resolution, shall be submitted to the
16 people of Oklahoma for their approval or rejection as and in the
17 manner provided by law.

18 SECTION 4. The President Pro Tempore of the Senate shall,
19 immediately after the passage of this resolution, prepare and file
20 one copy thereof, including the Ballot Title set forth in SECTION 2
21 hereof, with the Secretary of State and one copy with the Attorney
22 General.

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1 Passed the Senate the 26th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives